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★ FEB 11 2011 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

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RUBEN PABON, NAQUAN MCCRAY, JOSE ZUNIGA
AND TYAHMEEK DAASHAWN WARE,

Plaintiffs,

**COMPLAINT AND
JURY DEMAND**

-against-

ELECTRONIC FILING CASE

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, ASSISTANT CHIEF GERALD
NELSON, LIEUTENANT CHRISTOPHER D.
DEVANEY, POLICE OFFICER MICHAEL
BURBRIDGE SHIELD NO. 15488, AND JOHN DOE
##1-5,

CV 11 - 0706

Defendants.

GLEESON, J.

CARTER, M.J.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §§1983, 1988 the Fourth and Fourteenth Amendments to the United States Constitution.
2. The claim arises from a January 14, 2010 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, unwarranted entry into plaintiffs' home and false arrest.
3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.

PARTIES

7. Plaintiffs are citizens of the United States and at all times here relevant resided in the County of Queens, City and State of New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

9. New York Police Commissioner Raymond Kelly ("the Commissioner") was at all times here relevant the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. The Commissioner is sued in his individual and official capacities.

10. Assistant Chief Gerald Nelson is the Commanding officer of the Brooklyn North Borough Patrol and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. The Assistant Chief is sued in his individual and official capacities.

11. All other individual defendants are members of the NYPD, and are sued in their individual and official capacities.

12. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City

and State of New York.

NOTICE OF CLAIM

13. Within 90 days of the events giving rise to this claim, plaintiffs filed written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

14. On January 14, 2010, at approximately 11:00 p.m., plaintiffs were at 869 Flushing Avenue, Apartment 9G, Brooklyn, NY playing video games.

15. At around that time, defendant police officers forcibly entered the apartment without a warrant and without exigent circumstances and then entered the room where the four plaintiffs were located. They entered the room with guns drawn, and they pointed the guns at plaintiffs' faces.

16. The plaintiffs were falsely arrested in the room, handcuffed and forced into another room of the apartment. They were then taken to the precinct where false charges were initiated against them.

17. Because of the defendant officers' false arrest and malicious prosecution, plaintiffs were incarcerated for six days. On January 20, 2010, all charges against plaintiffs were dismissed. The home was unlawfully searched and ransacked by police officers, causing property damage. Plaintiffs were unlawfully imprisoned and falsely arrested.

18. At all times during the events described above, the defendant Officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical

presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff.

19. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

20. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- b. Violation of his right to Due Process of Law under the Fourteenth Amendments to the United States Constitution;
- c. Property loss and property damage;
- d. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety;
- e. Deprivation of liberty; and
- f. Attorney's and court fees.

FIRST CAUSE OF ACTION
(42 USC § 1983)

21. The preceding paragraphs are here incorporated by reference.

22. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights under color of law and have conspired to deprive them of such rights and are liable to plaintiffs under 42 USC § 1983.

23. Defendants' conduct deprived plaintiffs of their right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States

Constitution. Defendants' conduct also deprived plaintiffs of their right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution.

24. Plaintiffs have been damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION
(MUNICIPAL LIABILITY)

25. The preceding paragraphs are here incorporated by reference.

26. The City and the Commissioner are liable for the damages suffered by plaintiffs as a result of the conduct of their employees, agents, and servants.

27. The City and the Commissioner knew or should have known of their employees', agents, or servants' propensity to engage in the illegal and wrongful acts detailed above.

28. The aforesaid event was not an isolated incident. The City and the Commissioner have been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of their police officers are insufficiently trained on the proper basis for an arrest, and the observations required to support probable cause. The City and the Commissioner are further aware, from the same sources, that a "wall of silence" exists by which police officers assault and falsely arrest citizens without fear of reprisal. The City and the Commissioner fail to discipline officers for not reporting fellow officers' misconduct that they have observed, and they fail to discipline officers for making false statements in criminal complaints, in in-court testimony, and to disciplinary agencies. Further, there is no procedure to notify individual officers, or their supervisors, of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, the City and the Commissioner have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the

outcome of the civil actions. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate the plaintiffs' civil rights, without fear of reprisal.

29. The City and the Inspector knew or should have known that the officers who caused plaintiff injury had a propensity for the type of conduct that took place in this case. Nevertheless, the City and Commissioner failed to take corrective action.

30. The City and Commissioner have failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

31. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City and the Commissioner to the constitutional rights of persons within New York City, and were the cause of the violations of plaintiffs' rights here alleged.

32. Defendants City of New York and the Commissioner have damaged plaintiffs by their failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of their employees, agents or servants in this and in similar cases involving police misconduct.

33. Plaintiffs have been damaged as a result of the wrongful, negligent and illegal acts of the City and the Commissioner.

THIRD CAUSE OF ACTION
(CONSPIRACY)

34. The above paragraphs are here incorporated by reference.

35. Defendant officers made an agreement to attempt to cover up the assault, battery

and excessive force against plaintiff.

36. Defendant Officers took action in furtherance of this agreement by charging plaintiff with resisting arrest.

37. Plaintiff was injured as a result of defendants' conspiracy.

FOURTH CAUSE OF ACTION
(ASSAULT)

38. The preceding paragraphs are here incorporated by reference.

39. Upon approaching plaintiffs, defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

40. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under common law, 42 USC §§1983 and 1985 and the New York State Constitution.

41. Each plaintiff was damaged by defendants' assault.

FIFTH CAUSE OF ACTION
(BATTERY)

42. The preceding paragraphs are here incorporated by reference.

43. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered him.

44. Defendants used excessive and unnecessary force with plaintiffs.

45. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under common law, 42 USC §§1983 and 1985 and the New York State Constitution.

46. Each plaintiff was damaged by the defendants' battery.

SIXTH CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

47. The preceding paragraphs are here incorporated by reference.

48. Defendants subjected plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

49. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

50. As a result of the false arrest, imprisonment, and deprivation of liberty, each plaintiff was damaged.

SEVENTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)

51. The preceding paragraphs are here incorporated by reference.

52. Defendants, acting with malice, initiated a prosecution against plaintiff and caused him to be prosecuted.

53. The criminal proceedings were terminated favorably to defendant.

54. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC §1983, New York State common law, and the New York State Constitution.

55. As a result of the malicious prosecution, each plaintiff was damaged.

EIGHTH CAUSE OF ACTION
(RESPONDEAT SUPERIOR)

56. The preceding paragraphs are here incorporated by reference.

57. Defendant police officers' intentional tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

58. As a result of Defendant police officer's tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, each plaintiff was damaged.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of plaintiff in an amount to be determined by a jury for each of plaintiff's causes of action;
- B. Awarding plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York
February 11, 2011

TO: New York City
Corporation Counsel Office
100 Church Street, 4th floor
New York, NY 10007

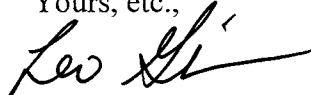
Police Commissioner Raymond W. Kelly
1 Police Plaza
Room 1406
New York, NY 10006

Assistant Chief Gerald Nelson
Brooklyn North Anti-Crime Unit

Police Officer Michael Burbridge
Shield no. 15488
Brooklyn North Anti-Crime Unit

Lt. Christopher D. Devaney
Brooklyn North Anti-Crime Unit

Yours, etc.,



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